

Private and Confidential

15 May 2020

Mr Richard McLean
2 McCubbin Street
FOOTSCRAY, VIC 3011

By email only: rich@richmclean.com.au

Dear Mr McLean

Your Freedom of Information request

I am writing in response to your revised request for documents under the *Freedom of Information Act 1982* (Cth) (**FOI Act**) dated 17 March 2020, received by the Australian Health Practitioner Regulation Agency (**Ahpra**) by email on this day.

Under section 23 of the FOI Act, I am an authorised decision maker. In making this decision I have applied the FOI Act as modified by the *Health Practitioner Regulation National Law Regulation 2018* (as enacted in each state and territory). This letter sets out my decision in response to your request.

Your request

On 17 March 2020, we confirmed your revised request for access to the following information:

- 1) *I request documentation to do with my case that allow the GP to edit my evidence.*
- 2) *I request the 'marked up' version you sent to 'The Board' for consideration, because in court it will show that the GP's 'marked up' version differs to what I provided. I remind you you are under investigation by Preya McKenzie from NHPOPC*
- 3) *Any emails or documents referring to this case shared by Gemma mainland, Ben Laycock, internal memos and anything mentioning this case I have a right to see.*
- 4) *I wish to see all emails pertaining to the case from Ball and Partners that suggest to give value to the recording is illegal.*
- 5) *I request anything to do with my case, emails or letters from Dr Whitaker or his Lawyer referring to the outcome of my case or mention my name*
- 6) *Emails internally from Gemma Mainland or Ben laming that mention my case.*
- 7) *I request the names of the people on the Australian medical Review board that decided my case.*
- 8) *I request any correspondence why this was not relayed to me via the mail or email*
- 9) *Specifically, I wish to gain evidence of what Ball & Partners submitted as evidence to the board, including re: the legalities of the recording, and the entirety of my patient records that were considered by AHPRA or The Australian Medical Board*

Australian Health Practitioner Regulation Agency | National Boards

GPO Box 9958 Melbourne VIC 3001 Ahpra.gov.au 1300 419 495

Ahpra and the National Boards regulate these registered health professions: Aboriginal and Torres Strait Islander health practice, Chinese medicine, chiropractic, dental, medical, medical radiation practice, midwifery, nursing, occupational therapy, optometry, osteopathy, paramedicine, pharmacy, physiotherapy, podiatry and psychology.

10) *I seek documents relating back to the time I commenced seeing Dr Whitaker six years ago.*

11) *I request any medical information about me that AHPRA holds over my lifetime."*

On this day we advised you that because there are documents within the scope of your request that contain third-party personal information, section 15(6) of the FOI Act extended the date on which a decision is to be provided so Ahpra may undertake consultations with the identified third parties as required under section 27A of the FOI Act.

Common Protocol

From the outset I would like to acknowledge the important role that notifiers play in the occupational regulation of health professions in Australia. Australian governments have acknowledged the personal, rather than legal interest notifiers have in being informed about decisions made in response to their concerns. Government has amended the *Health Practitioner Regulation National Law Act 2009* as enacted in each state and territory (National Law) to enable National Boards to share more information about decisions and the reasons for those decisions. The Board has published a policy, the *Common Protocol for Informing notifiers about the reasons for National Board decisions*, to explain the circumstances in which reasons for decisions will be shared with notifiers.

It's important to note that the National Law does not provide for notifiers to be provided with access to documents relating to the decision-making process. Public access to such documents is regulated under the FOI Act. Notifiers do not have greater standing under the FOI Act than any other member of the public who may apply to Ahpra for access to a document. When reaching a decision on access, Ahpra is unable to take into consideration any personal interests an applicant holds in relation to the request.

Materials Relevant to Making of Decision

In reaching my decision I referred to:

- the terms of your request;
- the documents relevant to the request;
- the FOI Act;
- the consultation responses from the third parties Ahpra consulted with in accordance with the FOI Act;
- the National Law; and
- FOI Guidelines issued by the Australian Information Commissioner.

Decision

I have identified 62 documents relevant to your request. Of those, I have decided to release 26 documents to you in full, while the remaining 36 documents are exempt in full, or in part, under one or more of the following sections of the FOI Act: 37, 42, 47B, 47C, 47E(d) and 47F.

Attached to this notice of decision is a schedule of documents that provides a description and my decision in relation to each document, referring to the exemption provisions I have relied on.

Edited copies of documents and prior redactions

I have removed the exempt information from the relevant documents in accordance with section 22 of the FOI Act and released the edited copies to you. The specific provision(s) applied to exempt the information from release is marked on each document. Please note that document 7 includes prior redactions that were made during the notifications process.

Reasons for decision

My finding and conclusions are set out below.

Section 37 Exemption - Prejudice to law enforcement or public safety

A document is exempt under section 37(1)(a) of the FOI Act if its disclosure would, or could reasonably be expected to:

...prejudice the conduct of an investigation or a breach, or possible breach, of the law, or a failure, or possible failure, to comply with a law relating to taxation or prejudice the enforcement or proper administration of the law in a particular instance.

To establish exemption under section 37(1)(a), I must be satisfied that the disclosure of the document would or could reasonably be expected to prejudice the conduct of an investigation. This means I must make a judgment as to whether there is a real and not remote possibility of prejudice to the conduct of an investigation, based on reasonable grounds.¹ There is no separate public interest test for section 37(1)(a).

The documents identified as exempt from release under section 37(1)(a) of the FOI Act, are documents that were created in response to an investigation currently being conducted by the National Health Practitioner Ombudsman and Privacy Commissioner (**NHPOPC**) regarding the complaint you made to the NHPOPC, about Ahpra's administrative handling of the notification you made about Dr Whitaker. Investigations conducted by the NHPOPC are conducted in private review² and require NHPOPC officers to observe the confidentiality of any information they acquire.³ As the NHPOPC's investigation into the complaint you made about Ahpra's handling of your notification about Dr Whitaker is ongoing, it is my view that disclosure of the documents subject to the investigation currently being conducted would, or could reasonably be expected to prejudice the conduct of the investigation. Accordingly, I find the documents identified in the attached schedule exempt from release under section 37(1)(a) of the FOI Act.

Section 42 exemption - Documents subject to legal professional privilege

Section 42(1) of the FOI Act provides that a document is exempt if it would be privileged from production in legal proceedings on the ground of legal professional privilege (**LPP**). A document is subject to LPP if the following criteria apply:

- there exists a lawyer-client relationship;
- there have been confidential communications which are recorded in the document;
- the communications were for the dominant purpose of providing legal advice or in the context of
- actual or anticipated legal proceedings; and
- the privilege has not been waived.

With respect to document 57 in the attached schedule, I find the document exempt in full under section 42 of the FOI Act, because it contains communications between Ahpra in-house lawyers and Ahpra staff. Ahpra has a legal division which is staffed by lawyers admitted to practice and who hold current practising certificates. The lawyers in this division provide independent legal advice to National Boards and Ahpra staff. I am satisfied that Ahpra's in-house lawyers provided legal assistance in relation to the notification you made about Dr Whitaker and that a lawyer-client relationship existed between the Medical Board of Australia (the Board) / Ahpra staff and Ahpra's in-house lawyers.

Dominant purpose

I am satisfied that the communication in question was created for the dominant purpose of providing legal advice to Ahpra staff, in relation to the issues raised in your notification about Dr Whitaker.

Confidential communications

I am satisfied that the relevant communication made from the Ahpra in-house lawyers to Ahpra staff, was made on the understanding that it was confidential, based on the nature of the communication, the context in which it arose, and the fact that the legal advice was only communicated to a limited number of people

¹ See *Chemical Trustee Ltd v Federal Commissioner of Taxation* [2013] AATA 623 at [79].

² *Ombudsman Act 1976* (Cth) s 8(2).

³ *Ombudsman Act 1976* (Cth) s 35.

on a need to know basis. It is my position that the communication continues to be treated in a confidential manner.

No waiver

Section 42(2) of the FOI Act provides that a document is not exempt under section 42(1) of the FOI Act if the person entitled to claim LPP waives that claim. A person entitled to the benefit of LPP may waive that privilege either expressly or by implication. LPP is waived if the conduct of the person seeking to rely on the privilege is inconsistent with the maintenance of the privilege. This will depend on the circumstances of the case, including whether the disclosure was for any advantage. There is no evidence to indicate that the substance of the communication has been disclosed more broadly or used in any way that would be inconsistent with maintaining the confidentiality of the communication. I am therefore satisfied that privilege has not been waived.

Operational information

Section 42(3) of the FOI Act provides that a document is not exempt under section 42(1) of the FOI Act insofar as it is operational information. 'Operational information' is defined in section 8A of the FOI Act, and refers to information used to assist an agency to perform or exercise its functions in making decisions or recommendations that affect certain persons or classes of persons. I am satisfied that the privileged communication in the document does not comprise of operational information.

Accordingly, I am satisfied that the document identified in the attached schedule is exempt from release under section 42 of the FOI Act.

[Section 47B conditional exemption – State-State relations](#)

Section 47B of the FOI Act, as modified by the *Health Practitioner Regulation National Law Regulation 2018*, provides that a document is conditionally exempt if it would divulge information or matter communicated in confidence by or on behalf of the Government of a State or an authority of a State, to the Government of another State, to an authority of the State or to a person receiving the communication on behalf of the State or of an authority of the State. This exemption may apply even if the disclosure does not result in an action for breach of confidence.

Ahpra is a state agency established under the National Law, while the NHPOPC although considered to be a single national entity, is created in each state and territory by the National Law that has been enacted in each jurisdiction.

As advised above, there are documents relevant to the scope of your request that contain communications between Ahpra and the NHPOPC that relate to the NHPOPC's ongoing investigation into the complaint you made about Ahpra's administrative handling of the notification you made about Dr Whitaker. The information does not relate to routine or administrative matters and the documents are not already in the public domain. Having regard to the nature of the information, the context in which the documents were provided, the relationship between Ahpra and the NHPOPC and the fact that the information is subject to the confidentiality obligations under the National Law, I am satisfied that the information was communicated in confidence and this was mutually understood by both parties.

Accordingly, I find the documents identified in the attached schedule conditionally exempt under section 47B of the FOI Act. However, notwithstanding this, section 11A(5) of the FOI Act provides that access to a conditionally exempt document must be granted unless doing so would, on balance, be contrary to the public interest. I have considered the application of the public interest test further below

[Section 47C conditional exemption - Documents disclosing deliberative matter](#)

Section 47C(1) of the FOI Act provides that a document is conditionally exempt if its disclosure would disclose 'deliberative matter' in the nature of, or relating to:

- opinion, advice or recommendation obtained, prepared or recorded; or
- consultation or deliberation that has taken place,

in the course of, or for the purposes of, the deliberative processes involved in the functions of an agency, a Minister, or the Government of the Commonwealth.

Deliberative process

The National Law establishes the Board as a National Board that regulates one of 16 different health professions that fall within the jurisdiction of the National Law. It also provides a process for the receipt, assessment and investigation of notifications made to Ahpra that raise concerns about the health, performance and/or conduct of registered health practitioners.

The Board's functions are defined in section 35 of the National Law and include, but are not limited to, the following:

- registering suitably qualified and competent persons in the health profession and, if necessary, to impose conditions on the registration of persons in the profession;
- deciding the requirements for registration or endorsement of registration in the health profession, including the arrangements for supervised practice in the profession;
- overseeing the receipt, assessment and investigation of notifications about persons who are or were registered as health practitioners;
- establishing panels to conduct hearings about health and performance and professional standards matters in relation to persons who are or were registered as health practitioners under the National Law; and
- overseeing the management of health practitioners and students registered in the health profession, including monitoring conditions, undertakings and suspensions imposed on the registration of the practitioners or students.

Ahpra provides administrative assistance and support to the Board in exercising its functions under the National Law. Amongst other things, Ahpra (on behalf of the Board) manages investigations into the health, professional conduct and/or performance of registered health practitioners, including requesting and reviewing responses to notifications.

The documents identified as conditionally exempt in full or in part under section 47C of the FOI Act are an Assessment Report dated 29 October 2019 and the associated Decisions and Actions paper dated this same day. The documents were prepared by Ahpra for the Board and contain:

- advice and recommendations prepared by Ahpra for consideration by the Board; and
- information which discloses deliberations (including preliminary assessments) by Ahpra and the Board;

in the course of, and for the purposes of, responding to and investigating the notification you made about Dr Whitaker.

I am satisfied that the disclosure of the documents would disclose deliberative matter in the nature of and relating to, advice and recommendations that were prepared, and deliberation that has taken place, in the course of, or for the purposes of the deliberative processes involved in the functions of Ahpra and the Board under the National Law. The deliberative material I have identified does not contain operational information (as defined in section 8A of the FOI Act) or purely factual material. To the extent that the information is of a factual nature, such information is an integral part of the deliberative content and purpose of the documents or is otherwise so embedded in or intertwined with the deliberative content such that it is impracticable to separate it. The deliberative material also does not include reports of scientific or technical experts, reports of a prescribed body or organization, or the record or reasons for a final decision given in the exercise of a power or adjudicative function. Accordingly, I find the documents discussed above and identified in the attached schedule as conditionally exempt in full or in part under section 47C of the FOI Act.

However, as stated above, section 11A(5) of the FOI Act, provides that access to a conditionally exempt document must be granted unless doing so would, on balance, be contrary to the public interest. I have considered the application of the public interest test further below.

Section 47E(d) conditional exemption – Substantial adverse effect on the proper and efficient conduct of the operations of an agency

Section 47E(d) of the FOI Act provides that documents are conditionally exempt if disclosure would, or could, reasonably be expected to have a substantial adverse effect on the proper and efficient conduct of the operations of an agency such as Ahpra.

As previously mentioned, Ahpra provides administrative assistance and support to the National Boards in exercising their functions under the National Law, including responding to notifications and managing investigations relating to the health, professional conduct and/or performance of registered health practitioners. The cooperation of, and provision of comprehensive information by practitioners and Ahpra officers (as well as other government agencies and third parties as relevant) is essential to ensuring that a robust investigation and decision-making process is carried out.

The documents identified as conditionally exempt in full or in part under section 47E(d) of the FOI Act are:

- an Assessment Report written by Ahpra for the Board in the course of, and for the purposes of, responding to the notification you made about Dr Whitaker;
- the Decisions and Actions paper associated to the above-mentioned report;
- internal Ahpra communications that discuss the assessment of the issues raised in the notification;
- correspondence shared between Ahpra and the Health Complaints Commissioner (**HCC**); and
- correspondence shared between Ahpra and the NHPOPC.

I am satisfied that disclosure would, or could reasonably be expected to, have a substantial adverse effect on the proper and efficient conduct of the operations of Ahpra and the Board, for the following reasons:

- information provided to Ahpra and the National Boards are provided on the understanding that they will be treated in a confidential manner and used in accordance with the National Law and the *Privacy Act 1988* (Cth) (**Privacy Act**);
- the FOI Act does not restrict the subsequent use of information released to an applicant under the FOI Act. In Australia there is case law relating to disclosure of information under the FOI Act, for example, the Administrative Tribunal (AAT) has stated that *'access to a document under the FOI Act must be considered not on the basis of the identity and the qualities of the person who seeks that access but on the basis that it may be seen by anybody. As it is usually expressed, access under the FOI Act, is access to the world at large.'*⁴
- if documents were released under the FOI Act, without the express consent of the relevant parties, this would likely have a significant adverse impact on the future flow of information from complainants, practitioners and other government agencies. Pertinently, this may inhibit individuals from expressing freely and providing complete and frank information out of concern that their communications may be subject to disclosure under the FOI Act. Similarly, Ahpra staff may be discouraged from keeping complete records of their deliberations,⁵ or being more circumspect in their preliminary findings that are expressed to the Board because of public scrutiny;⁶ I note these principles have recently being enforced in the recent NHPOPC review decisions of 'MS' and Ahpra (FOI)⁷ and JH and Ahpra (FOI);⁸
- it is integral for the efficient management of notifications that the Board can continue to meet an individual's expectation of confidentiality over the communications and documents provided to assist the Board in its investigation. This maintenance of confidentiality is critical to ensuring that investigations are carried out both efficiently and effectively. Internal documents such as internal correspondence that include discussions related to the issues raised in a notification and/or Board papers that include discussions related to preliminary findings and recommendations to the Board, are made on the understanding that the documents, information and communication will be treated in a

⁴ *Meschino and Centrelink* [2002] AATA 627, at para [23].

⁵ *Hanes v Australian Health Practitioner Regulation Agency (Review and Regulation)* [2013] VCAT 1270 at [30].

⁶ *Hassan v Australian Health Practitioner Regulation Agency* [2014] QCAT 414 at [26].

⁷ 'JH' and the Australian Health Practitioner Regulation Agency (Freedom of Information) [2020].

⁸ 'MS' and the Australian Health Practitioner Regulation Agency (Freedom of Information) [2020].

confidential manner and will only be used to assist the Board in undertaking its functions under the National Law;

- correspondence and material disclosed to Ahpra from the HCC in the course of referring the matter to Ahpra under section 148 of the *Health Complaints Act 2016* (VIC), is information obtained by Ahpra in a context where it was understood that the information would be confidential;
- decisions by National Boards are made after deliberations and consultations between Board members and in consensus. Board communications released under the FOI Act could expose the deliberations of the individual Board members which could lead to undue criticisms of individual Board members. This in turn would adversely affect agency operations, in that Ahpra and the National Boards would not be able to properly and efficiently recruit and retain skilled individuals to the National Boards; and
- as it is a core function of Ahpra under the National Law to conduct investigations, damage to Ahpra's ability to properly and efficiently conduct such investigations would have a substantial adverse effect on the proper and efficient conduct of the operations of the agency.

On this basis, I consider disclosure could reasonably be expected to adversely affect Ahpra's operations, and it is my view that this adverse effect is serious and not insubstantial. I therefore find the documents conditionally exempt in full or in part under section 47E(d) of the FOI Act. However as noted above, section 11A(5) of the FOI Act requires me to grant access to a conditionally exempt document unless doing so would, on balance, be contrary to the public interest. I have considered the application of the public interest test further below.

Section 47F conditional exemption – documents affecting personal privacy

Documents are conditionally exempt from disclosure under section 47F of the FOI Act to the extent that disclosure would involve the unreasonable disclosure of personal information about any person.

Personal information

Section 4 of the FOI Act provides that personal information has the same meaning as in the Privacy Act. Personal information is defined in section 6 of the Privacy Act as:

...information or an opinion about an identified individual, or an individual who is reasonably identifiable:

- a. whether the information or opinion is true or not,*
- b. whether the information or opinion is recorded in a material form or not.*

The elements of 'personal information' are:

- a) it relates only to a natural person (not, for example, a company)
- b) it says something about the individual
- c) it may be in the form of an opinion, it may be true or untrue, and it may form part of a database, and
- d) the individual's identity is known or is reasonably ascertainable using the information in the document.

The documents identified as exempt in full or in part under section 47F of the FOI Act, contain the names and contact details of third-party individuals, Dr Whitaker's personal contact and registration details and other information of a personal nature.

Disclosure unreasonable

In considering whether disclosure of personal information would be unreasonable, section 47F(2) of the FOI Act requires me to take into account:

- a) the extent to which the information is well known
- b) whether the person to whom the information relates is known to be (or to have been) associated with the matters dealt with in the document

- c) the availability of the information from publicly accessible sources, and
- d) any other matter I consider relevant.

In addition to factors a) to c), other matters I have considered include:

- the nature of the information and the circumstances in which AHPRA obtained the information or created the documents;
- the reasonable expectation of confidentiality of an individual to whom the information relates;
- the intrusion into the practitioner's privacy and potential reputational harm that may occur if the information in the documents were to be more widely disseminated;
- whether the information would shed light on the workings of government and the current relevance of the information; and
- the consultations conducted with the relevant third-party individuals about the information being disclosed.

Although I acknowledge you are seeking to obtain information regarding the notification you made about Dr Whitaker and that Dr Whitaker may be known by you, to be associated with the matters dealt with in the documents, the specific information and personal views expressed about Dr Whitaker are not known to you, nor are they publicly accessible or well known. Furthermore, I am satisfied from my own enquiries that the personal information about Dr Whitaker is not well known or publicly available. Ahpra and the Board obtained this information to facilitate its investigation into the notification you made about Dr Whitaker. There is an expectation that the personal information would only be used by Ahpra and the Board in this context. I have also considered whether the information would shed light on the workings of government, in particular the investigation process and evidence that was taken into account. However, when balanced against the other considerations discussed above, I am satisfied that disclosure of the relevant third-party personal information would be unreasonable in the circumstances.

Section 47F(3) of the FOI Act, provides that a document is not conditionally exempt under section 47F(1) of the FOI Act, simply because it contains information about you. I have not found any documents to be conditionally exempt on this basis. Some of the documents relevant to the scope of the request contain joint personal information about you and Dr Whitaker, where the information is so intertwined that it is not reasonably practicable to separate your information from that of Dr Whitaker's information. Accordingly, I find the documents identified in the attached schedule as exempt from release in full or in part, under section 47F of the FOI Act.

However, as noted above, I must give access to the documents unless, in the circumstances, access at this time would on balance be contrary to the public interest. I have considered the application of the public interest test further below.

The public interest

In balancing the public interest in this case, I have considered the following factors for and against disclosure, including relevant factors favouring disclosure set out in section 11B(3) of the FOI Act. I have not taken into account any irrelevant factors specified in section 11B(4) of the FOI Act.

Factors in favour of disclosure:

- a) promoting the objects of the Act, particularly in increasing scrutiny, discussion, comment and review of the Government's activities (section 3(2)(b) of the FOI Act). Public scrutiny of documents relevant to deliberations of Ahpra and the National Boards may improve the quality of advice and decision-making processes;
- b) facilitating access to information to members of the public that allows them to be satisfied that proper processes have been followed by the agency (including investigation processes of Ahpra and the National Boards);
- c) revealing information that informed a decision-making process; and

- d) allowing a person to access their personal information, or information relating to matters that otherwise concern them.

There may be some public interest in releasing the relevant information insofar as doing so would promote the objects of the FOI Act by facilitating access to documents generally. However, I do not consider giving access to the documents would increase scrutiny, discussion, comment or review of the actions of Ahpra and the Board in relation to the notification you made about Dr Whitaker.

Factors against disclosure:

- a) the public interest in protecting and maintaining the integrity of Ahpra, the National Board's (including the Board's) and other similar agencies' assessment and investigative processes. For example, Ahpra's ability to properly and efficiently investigate notifications about registered health practitioners is integral to the maintenance and enforcement of the National Law. There is a strong public interest in ensuring proper processes for consumer protection,⁹ and that only suitable practitioners in various fields of the health profession can provide services to the public;¹⁰
- b) the public interest in Ahpra and the National Boards being able to carry out their statutory functions as efficiently and effectively as possible, including consulting with other state bodies such as the HCC to assist with any necessary preliminary assessments and investigations. Disclosure could reasonably be expected to affect Ahpra's ability to obtain similar information in the future, thereby making the assessment and investigation of notifications more difficult;
- c) that disclosure could reasonably adversely affect the ability of Ahpra to conduct its personnel management processes to ensure the continued efficiency of the agency, as well as the safety and wellbeing of its staff. The adverse impact on Ahpra's ability to effectively and efficiently manage and respond to various communications if they were to be directed to Ahpra staff other than the designated contact points;
- d) that disclosure could reasonably adversely affect the ability of Ahpra to recruit and retain suitably qualified individuals to the agency and the Board;
- e) disclosure could reasonably be expected to prejudice Ahpra's ability to seek responses from health practitioners subject to notifications, as they would naturally be more reluctant to engage with Ahpra in a frank and candid manner about their practices, with the knowledge their personal information and/or responses would be made publicly available; and
- f) the prejudice of an individual's right to privacy, particularly as the relevant material is not well known or publicly available. Disclosure could also expose third parties to unfair scrutiny, in circumstances where they understood their personal information would be confidential. The personal privacy exemption is designed to prevent the unreasonable invasion of a third parties' privacy.¹¹ I consider that the prejudice to the protection of an individual's right to privacy is a factor that weighs heavily against disclosure.

Conclusion

In determining what weight should be given to the factors favouring disclosure, I have considered the fact you were notified of and provided with the reasons for the Board's decision on 8 November 2019, in relation to the notification you made about Dr Whitaker.

Accordingly, I have decided the documents discussed above and identified in the attached schedule are exempt in full or in part, under one or more of the following sections of the FOI Act: 37, 42, 47B, 47C, 47E(d) and 47F, as disclosure of the documents would on balance, be contrary to the public interest.

Charges

No charges have been imposed for the processing of this request.

⁹ *Ah Teo v Pacific Media Group* [2016] VSC 626 at [30].

¹⁰ *Hanes v Australian Health Practitioner Regulation Agency* [2013] VCAT 1270 at [67] quoting *Hulls and Victorian Casino and Gaming Authority* (1998) 12 VAR 483.

¹¹ *Re Veale and Town of Bassendean* [1994] WAICmr 4.

Review Rights

If you disagree with my decision, you can ask for the decision to be reviewed.

Internal review

Firstly, under section 54 of the FOI Act, you may apply for an internal review of this decision. Your application must be made by whichever date is the later between:

- 30 days of you receiving this notice, or
- 15 days of you receiving the documents to which you have been granted access.

An internal review will be conducted by a different officer from the original decision-maker. No particular form is required to apply for review although it will assist your case to set out in the application the grounds on which you believe that the original decision should be overturned.

An application for a review of the decision should be addressed to:

Senior Legal Advisor
National Information Release Unit
Ahpra
GPO Box 9958
MELBOURNE VIC 3001
foi@ahpra.gov.au

If you choose to seek an internal review, you will subsequently have a right to apply to the NHPOPC for a review of the internal review decision. However, if you wish, you may choose not to seek internal review with Ahpra and instead apply for review of this decision to the NHPOPC.

Review and complaints to the NHPOPC

Under section 54L of the FOI Act, you may seek review of this decision by the NHPOPC. Your application must be made within 60 days of you receiving this notice. The NHPOPC is an independent office holder who may review decisions of Ahpra under the FOI Act. You can contact the NHPOPC to seek review of this decision at the details listed below. An FOI review application form is available on the NHPOPC website.

You may complain to the NHPOPC about action taken by Ahpra in relation to your request. The Commissioner's contact details for making a complaint are:

Mailing address:
National Health Practitioner Ombudsman and Privacy Commissioner
GPO Box 2630
MELBOURNE VIC 3001
Email address: complaints@nhpopc.gov.au
Telephone enquiries: 1300 795 265

To make a complaint to the NHPOPC, you can either call the contact number above or fill out a complaint form that is available on the NHPOPC website: <https://nhpopc.gov.au/>.

Contact

If you have any questions, please contact us at foi@ahpra.gov.au.

Yours sincerely



Alana Licastro
Senior FOI Officer
National Information Release Unit

Reference Number: FOI24135

Schedule of documents

Doc. No.	Dated	Description	No. of Pages	Decision
1	7 August 2018	Transcript of meeting between practitioner and notifier	9	Release
2	24 September 2018	Email from notifier to himself	5	Release
3	20 January 2019	Internal Ahpra correspondence	1	Exempt s47E(d)
4	25 January 2019	Email from HCC to Ahpra enc HCC complaint by notifier	5	Part exempt s47F
5	11 February 2019	Email from Ahpra to HCC	1	Exempt s47E(d) and s47F
6	30 April 2019	Statutory declaration by Duy Linh Nguyen	1	Release
7	10 May 2019	Copy of notification and materials sent to practitioner	31	Release - <i>includes prior redactions</i>
8	10 May 2019	Notification by notifier	8	Release
9	10 May 2019	Notification of new notification received online	2	Release
10	Various dates	Email correspondence with the HCC and Ahpra	4	Exempt s47E(d) and s47F
11	June 2019	Email correspondence between Ahpra and notifier	3	Release
12	7 June 2019	Email enclosing letter from Ahpra to notifier	6	Release
13	11 June 2019	Email from notifier to Ahpra (Fwd: email from HCC)	1	Release
14	11 June 2019	Email from notifier to Ahpra enclosing information	21	Release
15	26 June 2019	Telephone attendance between Ahpra and notifier	2	Release
16	26 June 2019	Telephone attendance between Ahpra and practitioner	1	Part exempt s47F
17	4 July 2019	Email enc letter from Ahpra to practitioner	9	Part exempt s47F
18	30 July 2019	Email from Ahpra to practitioner	1	Part exempt s47F
19	Various dates	Email correspondence between Ahpra and notifier	5	Release
20	8 August 2019	Letter from Ahpra to practitioner	8	Part exempt s47F
21	13 August 2019	Letter from Ahpra to practitioner	8	Part exempt s47F
22	21 August 2019	Telephone attendance between Ahpra and practitioner	1	Part exempt s47F
23	21 August 2019	Email from Ahpra to practitioner	1	Part exempt s47F
24	September 2019	Emails from practitioner LR to Ahpra	3	Part exempt s47F
25	8 October 2019	Email correspondence between Ahpra and notifier	3	Release

26	9 October 2019	Email from notifier to Ahpra	1	Release
27	9 October 2019	Internal Ahpra correspondence	2	Exempt s47E(d)
28	Various dates	Emails from practitioner LR to Ahpra enc transcript	14	Part exempt s47F
29	October 2019	Email from notifier to Ahpra	5	Release
30	29 October 2019	Decisions and Actions paper	4	Part exempt s47C, s47E(d) and s47F
31	29 October 2019	Assessment report	5	Exempt s47C, s47E(d) and s47F
32	29 October 2019	Assessment report attachments	187	Part exempt s47E(d) and s47F
33	4 November 2019	Email from Ahpra to notifier	2	Release
34	8 November 2019	Letter from Ahpra to notifier	3	Release
35	November 2019	Email correspondence between Ahpra and notifier	10	Release
36	8 November 2019	In person attendance file note - Ahpra and notifier	2	Release
37	8 November 2019	Letter from Ahpra to notifier sent in from notifier	3	Release
38	12 November 2019	Email enc letter from Ahpra to practitioner	3	Part exempt s47F
39	12 November 2019	Emails from notifier to Ahpra	6	Release
40	14 November 2019	Email from Ahpra to notifier	1	Release
41	November 2019	Email correspondence between Ahpra and notifier	5	Release
42	9 October 2019	National legal position on voice recordings	11	Part exempt s47F
43	17 January 2020	Email from notifier to Ahpra	5	Release
44	Various dates	Practitioner registration information	2	Exempt s47E(d) and s47F
45	Various dates	Service requests between Ahpra and notifier	3	Part exempt s47F
46	Various dates	Notifier's hard copy file	50	Part exempt s47E(d)
47	Undated	Internal Ahpra correspondence	2	Exempt s47E(d)
48	20 January 2020	Internal Ahpra correspondence	2	Exempt s47E(d)
49	5 February 2020	Email from notifier to Ahpra	1	Release
50	7 February 2020	Email from notifier to himself	1	Release
51	7 February 2020	Internal Ahpra correspondence	1	Exempt s47E(d)
52	10 February 2020	Internal Ahpra correspondence	2	Exempt s47B and s47E(d)
53	10 February 2020	Letter from NHPOPC to Ahpra	3	Exempt s47B and s47E(d)

54	February 2020	Email correspondence between Ahpra NHPOPC	3	Exempt s47B and s47E(d)
55	18 February 2020	Internal Ahpra correspondence	2	Exempt s47E(d)
56	19 February 2020	Internal Ahpra correspondence	3	Exempt s47E(d)
57	28 February 2020	Internal Ahpra correspondence	10	Exempt s42, s47E(d) and s47F
58	2 March 2020	Email from Ahpra to NHPOPC	1	Exempt s37, s47B and s47E(d)
59	March 2020	Email correspondence between Ahpra and NHPOPC	2	Exempt s37, s47B and s47E(d)
60	3 April 2020	Email correspondence between Ahpra and NHPOPC	3	Exempt s37, s47B and s47E(d)
61	7 April 2020	Email correspondence between Ahpra and NHPOPC	2	Exempt s37, s47B and s47E(d)
62	Various dates	Practitioner response	149	Part exempt s47E(d) and s47F